

Fine: Pa(y)tent

WE'VE ALL HAD THE PAINFUL DISPLEASURE

of being fined at least once in our lives. Some more than others. Most of us experience it way before our brains have developed enough to even realise that we've been fined. I'm pretty certain you must have had a toy of yours taken away because you bonked your sibling on the head. Not that I've had a violent streak in me but as creatures born into this world without an iota of knowledge as to what's bad and what's good, we're shaped into understanding the rules of society by these measures. For a child, being separated from their toy is a form of punishment. For grown-ups, there are monetary fines, demotions, dismissals and the odd prison sentence should things get out of hand.

Some of these punishments do act as a deterrent but there are situations wherein the punishment really doesn't matter. Perhaps you don't have a choice. Perhaps you lack the appropriate neurochemical response associated with being penalised as is the case with psychopathic individuals. Most of us would weigh the pros and cons of breaking a certain before going ahead with the act. It's only logical. Take for example, if you had to shoot a hungry lion to save yourself, I don't see any sane person who'd sacrifice themselves. The deterrent effect of punishments vary vastly from person-to-person, country-to-country and company-to-company. There have been studies wherein student participants who had to pay fines for being late did not exhibit any corrective measures towards the end of the study. Then there are cases like Singapore, wherein the fines are so hefty that you'd memorise the rule book just to be on the safer side of things. What about multinational companies?

Search the phrase "fined for violating" in Google and you're bound to come across numerous technology companies. Ironically, for me seven out of the first 10 results were about Google getting fined. Technology companies rule the roost when it comes to getting fined. It's not because they're evil – perhaps I shouldn't be using definitive statements here – but because they're charting new technological and legal territories all the time. Territories which were not clearly studied by lawmakers in the past. This feels acceptable to me, it's part of being ahead of the game. However, I don't share the same opinion for companies that willingly flout the law in a country despite being fined for the

same act in another. That right there, is a business decision that has been vetted by numerous departments within the company and was found to be an acceptable risk. You'll see this happening often with privacy and information security violations. A few days ago, I was conversing with a friend who works as an Information Security Officer at a major consulting firm and was posted with a financial organisation. Turns out that it's common practise for the IT teams at these financial organisations to skirt past the security recommendations of the audits just to meet the production deadlines. The appalling thing about such incidents is that both parties, the financial institution and the auditing company, are aware of the bug and the institution asks for a temporary leeway so that they can meet deadlines. This particular incident was regarding an app used by the institution for internal purposes. Now imagine if the same was done with a banking app used by millions of people?

Companies cannot be treated like individuals. Monetary fines don't hurt for them as they do for you and I. For companies, it simply ends up being the cost of doing business. A year down the line, it ends up being a minor blimp on their financial declarations and everybody moves on. Technology companies who violate privacy laws or technology companies in general need to be treated differently. Certainly, you can bump the fine amount, add another zero at the end of millions and turn that into a billion, and it will still not be enough to be a deterrent. They make money off their technologies and that remains untouched by fines. I'd say, you should hit them where it hurts the most, take away their patents and put them in the public domain. Patents have tremendous monetary value and are what makes a technology company valuable.

The threat of losing patents should be, a great deterrent for technology companies. They'll lose the ability to make money from those patents and putting these patents in the public domain will accelerate the next industrial revolution. A common defense against this would be the commie argument, that by putting patents in the public domain, companies will be discouraged from innovating. Nope, I'm not advocating for all patents to be stripped. So they can still make money as long as they don't violate any laws. Let me know what you think, will it make the world a better place? [d](#)



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